

IN THE UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON

Plaintiff,

v.

Amentum Government Services Parent
Holdings LLC,
CLARENCE XANDER, JANICE HUGHES,
HEATHER GUNN, DAKOTA THOMAS,
ELIAS VELASQUEZ, and
YUSEF ABDUL-JAMI,

Defendants.

C.A. No.: 3:25-cv-01447-MCR-ZCB

MOTION FOR LEAVE TO AMEND COMPLAINT

Plaintiff, **Debra Nelson**, appearing pro se, respectfully moves this Court for an order granting leave to amend her complaint to add a **Fifth Amended Complaint** that clarifies and reorganizes the existing claims. In support of this motion Plaintiff states as follows:

I. Introduction

1. Plaintiff filed a **Fourth Amended Complaint** on **November 25, 2025** asserting claims for gender discrimination, retaliation, hostile work environment, defamation, intentional infliction of emotional distress, civil conspiracy, negligent supervision, breach of contract, wrongful termination, and related torts arising from her employment with **Amentum Government Services Parent**

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Holdings LLC (“Amentum”) at the **NAS Whiting Field** facility in Milton, Florida.

2. Plaintiff now seeks to **re-organize the pleading** for clarity and to correct minor numbering errors. No new factual allegations are introduced; the amendment merely restates the existing facts under the appropriate counts.

II. Legal Standard

3. **Federal Rule of Civil Procedure 15(a)(2)** provides that, after the one-time “as a matter of course” amendment, a party may amend its pleading **only with the opposing party’s written consent or the court’s leave**, and that **“the court should freely give leave when justice so requires.”**

4. The Supreme Court articulated the liberal standard in **Foman v. Davis**, 371 U.S. 178, 182 (1962):

“Leave to amend should be freely given when justice so requires, absent an ‘apparent or declared reason’ to do otherwise, such as undue delay, bad-faith or dilatory motive, repeated failure to cure deficiencies, undue prejudice to the opposing party, or futility of the amendment.”

5. Leave to amend should be granted because Plaintiff has acted diligently, the proposed amendment is not brought in bad faith, and Defendants will not suffer undue prejudice. The proposed Fifth Amended Complaint clarifies and incorporates facts that arose after prior pleadings and further aligns the claims with applicable law. Granting leave will promote resolution of this action on the merits, consistent with the liberal amendment standard of Rule 15(a)(2).

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III. Good-Faith Basis for the Amendment

6. The factual allegations supporting all existing claims are **already pleaded** in the Fourth Amended Complaint, including:
 - Plaintiff's race (African-American) and gender, and the alleged disparate treatment compared with similarly situated male employees (see paragraphs 14-31).
 - Hostile work environment and verbal abuse rooted in gender-based animus (paragraph 41).
 - Plaintiff's EEOC charge (Charge No. 510-2025-08373) asserting gender discrimination, which was issued a Right-to-Sue on **August 14, 2025**.
7. The amendment **does not introduce new factual content**; it merely reorganizes the existing claims for clarity.
8. **No undue delay** exists. The Fourth Amended Complaint was filed on **November 25, 2025**; this motion is filed on **December 29, 2025**, in response to Defendants Motion to Dismiss
9. The amendment will **not prejudice the defendants**. Because the factual allegations are unchanged, no additional discovery is required beyond what is already pending. The defendants have already been placed on notice of the gender-based allegations through the EEOC charge and the Fourth Amended Complaint.
10. The amendment is **not futile**; all claims remain viable under Title VII and applicable Florida law.

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IV. Proposed Amendment

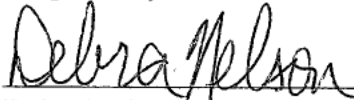
11. Plaintiff respectfully requests that the Court **attach as Exhibit A** the proposed **Fifth Amended Complaint**, which contains the same counts **I through VIII** as the Fourth Amended Complaint (Gender Discrimination, Retaliation, Hostile Work Environment, Defamation, Intentional Infliction of Emotional Distress, Civil Conspiracy, Negligent Supervision, Whistleblower Retaliation Fla. Stat. § 448.102(3)).
12. The remainder of the Fifth Amended Complaint is identical to the Fourth Amended Complaint and the updated numbering.

V. Conclusion & Prayer for Relief

WHEREFORE, Plaintiff respectfully requests that this Court:

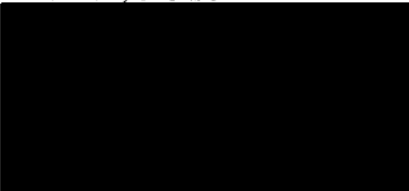
1. **Grant leave** to amend the complaint as set forth herein;
2. **Attach** the proposed Fifth Amended Complaint as **Exhibit A**;
3. **Set a briefing schedule** for any response to this motion (e.g., 21 days for a response, 14 days for reply); and
4. Award such other and further relief as the Court deems just and proper.

Respectfully submitted 29th of December, 2025,



Debra Nelson

Plaintiff, Pro Se



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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing **Plaintiff's Motion for Leave for Fifth Amended Complaint** was served upon counsel for Defendants by email addressed as follows:

Lindsay D. Swiger

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Debra Nelson

Plaintiff, Pro Se

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EXHIBIT A

Fifth Amended Complaint